

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 06/17/2026

Case #	Case Name	Tentative
01384411	Biggs – Trust	TENTATIVE RULING Case: Biggs – Trust 01384411 Calendar No.: 2 Date: 06/17/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 55) Attorney Stephen P. Shepard seeks to be relieved as counsel for Trustee Michele Biggs. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21. Counsel has not complied with either. Counsel has not filed all three forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. Specifically, Counsel has not filed the Order Granting Attorney's Motion to Be Relieved – Civil (MC-053). All three mandatory forms must be filed <u>and</u> served on the client <u>and</u> on all persons who have appeared in this action. There is no proof of service filed with this motion. Counsel has also not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served on such motion or petition directing the representative to appear

		before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties.” The client is the trustee of the subject trust, and the court’s records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. If the client appears at the hearing, the motion may be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
		TENTATIVE RULING Case: Calendar No.: Date: 06/17/26
01059752	Zeigler - Trust	TENTATIVE RULING Case: Zeigler - Trust 01059752 Calendar No.: 6 Date: 06/17/2026 MOTION FOR RECONSIDERATION (ROA 551) Petitioner Linda Zeigler (“Petitioner”) filed a motion captioned as follows: “MOTION FOR RECONSIDERATION OF OSC RE CONTEMPT REQUEST TO RESTORE CALENDAR COURT ORDER OF 12.5.2022 HEARD ON 10.8.2025, C.C.P. §1008, AND REQUEST FOR STAY C.C.P. §404.5 FOR THE TRIAL SET FOR 12.2.2025. (ROA 551.) There is no proof of service of this motion and no opposition filed. Thus, the motion could be denied for lack of notice. The motion can further be denied on the merits.

		From what the court is able to decipher from the moving papers, Petitioner is requesting that the court reconsider the order made by Judge Baytieh on 10/8/25 (ROA 550). Judge Baytieh is unavailable to rule on this motion for reconsideration, having recused himself from this case on 2/3/26. On 10/8/25, Judge Baytieh denied Petitioner's motion to have the court reset a hearing on the court's OSC re Contempt. (Id.) Petitioner argues that the 10/8/25 Order must be reconsidered because Judge Baytieh mistakenly found that citations had not been issued in connection with Petitioner's request for an OSC re Contempt. Petitioner misunderstands the 10/8/25 Order. In the 10/8/25 Order, Judge Baytieh recounted the entire procedural history related to the OSC re Contempt, including what happened on 4/24/23. On 4/24/23, Judge Belz found that the charging papers for the OSC re Contempt had not been personally served; thus, he continued the OSC re Contempt to 6/5/23. (ROA 205.) Thereafter, Petitioner served citations and filed them on 5/22/23 and 5/24/23. (ROAs 211 and 212.) The OSC re Contempt was eventually heard and resolved on 8/7/23. (ROA 279.) Contrary to the assertions made in Petitioner's motion for reconsideration, Judge Baytieh did not deny Petitioner's motion to set a hearing on her OSC re Contempt because she had failed to serve citations. Judge Baytieh denied the motion because Judge Belz resolved the OSC re Contempt on 8/7/23 and Petitioner had cited no legal basis for her request to have it reheard. (ROA 279.) Based on the foregoing, Petitioner's motion for reconsideration is denied. Petitioner's request for a stay pending trial is denied as moot since trial is currently underway. Ms. Zeigler is ordered to serve notice of this ruling.
		[Motion Type]

01355718	Smith – Trust	TENTATIVE RULING Case: Smith – Trust 01355718 Calendar No.: 7 Date: 06/17/2026 MOTION TO COMPEL COMPLIANCE WITH SUBPOENA (ROA 230) Petitioner Brian Alexander Smith ("Petitioner"), in propria persona, moves to compel compliance with a subpoena issued to Evelyn Leathers, Notary Public, and Bezaire & Leathers (collectively, "Responding Parties"). A copy of the subject subpoena is not attached to the moving papers, though it is attached to the Opposition to this motion. (ROA 422, Ex. C.) It is not clear whether Petitioner intended to serve the subpoena on two separate witnesses (i.e., on the notary public and on the law firm) or whether Petitioner intended to serve only the notary public. If Petitioner intended the former, a separate subpoena should have been served on each witness. The subpoena does not have an issuance date, but Petitioner alleges that it was personally served on Responding Parties on 10/8/25. Thus, the earliest date on which Responding Parties could have complied is approximately 10/28/25. (Code Civ. Proc. § 2020.410(c).) Moreover, the subpoena has a date of production of 11/3/25. Yet Petitioner filed this motion on 10/20/25 at 8:00 a.m., well before the earliest date of compliance and the date of production demanded in the subpoena. Responding Parties served responses and objections to the subpoena by mail on 10/20/25. Based on the foregoing, the motion was filed prematurely, and the subsequent service of a response to the subpoena renders this motion moot. Therefore, the motion is DENIED. While an award of attorney's fees would be justifiable under Code of Civil Procedure section 1987.2, Responding Parties' request for attorney's fees must be DENIED. A self-represented attorney cannot be awarded attorney's fees, nor can a law firm be awarded attorney's fees when represented by one of its own partners. (<i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 280; <i>Musaelian v. Adams</i> (2009) 45 Cal.4th 512, 517;
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		<i>Carpenter & Zuckerman, LLP v. Cohen</i> (2011) 195 Cal.App.4th 373, 375.)
01426688	Sanburg - Trust	TENTATIVE RULING Case: Sanburg - Trust 01426688 Calendar No.: 8 Date: 06/17/2026 MOTION FOR LEAVE TO AMEND (ROA 158) Petitioner Paula Sanburg Ruby ("Petitioner"), in propria persona, moves for leave to file a Third Amended Petition to add "Phil Kerbis, as co-successor trustee" as a Respondent in this case. This motion came before the court on 4/15/26 at which time it was continued for compliance with California Rules of Court, rule 3.1324. Instead of filing a declaration that complies with Rule 3.1324 and attaching a copy of the Proposed Third Amended Petition to the declaration, Petitioner filed a new motion for leave to amend (ROA 243) along with a compliant declaration (ROA 244). Petitioner also filed the Proposed Third Amended Petition. (ROA 245.) This subsequently filed motion has been set for hearing on 9/2/26. The court understands that these newly filed documents were intended to be supplements to the initially filed motion for leave to amend. Counsel has now fully complied with Rule 3.1324. The motion is GRANTED. Petitioner shall file the Third Amended Petition within 10 days of this ruling. The Third Amended Petition shall be identical in content to the Proposed Third Amended Petition filed by Petitioner on 5/12/16. (ROA 245.) The motion for leave to amend set for 9/2/26 is VACATED.
01451379	Keane – Trust	TENTATIVE RULING Case: Keane – Trust 01451379

Calendar No.: 9

Date: 06/17/2026

DEMURRER (ROA 32)

Minors Nicholas Wu and Nathan Wu (collectively, the "Minors"), by and through their court-appointed Guardian ad Litem, demur to the Petition to Establish Ownership of Personal Property, and for an Order Confirming Trust Ownership of Personal Property filed on 1/6/25 (ROA 2) (the "850 Petition") by Petitioner Lorrie O. de Bellis ("Petitioner").

A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.)

A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. (Code Civ. Proc. §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-1099; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal.App.4th 989, 1006.)

Here, the 850 Petition seeks an order confirming that the Muriel Siebert & Co. Investment Account Number CXT-557037 (the "Siebert Account") belongs to the Robert M. Keane Living Trust (the "Trust") even though the Minors are designated as pay-on-death beneficiaries thereof. The Minors allege that the 850 Petition fails to state facts sufficient to constitute a cause of action under Probate Code section 850.

The 850 Petition alleges that the settlor and decedent Robert M. Keane ("Decedent") created the Trust on 10/24/23. A copy of the Trust is attached as Exhibit "B" to the 850 Petition.

Article V of the Trust governs distributions to beneficiaries upon Decedent's death. Subsection (B) of Article V of the Trust states as follows:

(B) Lifetime and Residuary Beneficiaries

1. The Trustee shall apply the net income from all investments which form a part of the Trust Estate, particularly all investments currently held by Siebert Account #CXT-557037, for the benefit of grantor's former spouse, WANVIMOL KEANE during her life. The net income from the Trust shall be distributed to or for the benefit of such beneficiary at such times and in such manner as, in the Trustee's sole discretion, will be in the best interests of said beneficiary. Any undistributed income shall be retained as part of the Trust Estate.

After the Decedent passed away, Petitioner learned that Decedent had designated the Minors as pay-on-death beneficiaries of the Siebert Account on 5/5/19, more than four years before he created the Trust. (ROA 2, Pet., ¶ 4.) The 850 Petition alleges that Decedent had no knowledge, recollection, or belief that the Siebert Account had any named beneficiaries and that he clearly communicated such belief to his estate planning attorney and to Petitioner. (Id.) Petitioner alleges that based on the language of Article V.(B), which designates Wanvimol Keane as a lifetime beneficiary of the income from the Siebert Account, as well as the Decedent's alleged lack of memory concerning the pay-on-death beneficiaries, the Decedent intended for the Siebert Account to be an asset of the Trust.

In their Demurrer, the Minors point to Schedule A of the Trust, which states in relevant part as follows: "All assets of every type or description belonging to Grantor, other than qualified retirement assets and other assets having named beneficiaries, are hereby transferred to the Trust." (Underline in original.) The Minors contend that the language of Schedule A and Article V.(B) taken together indicate that the Decedent intended only the net income from the Siebert Account to belong to the Trust, not the account itself. (ROA 32, Demurrer, 7:11-12.) However, such a distribution, even if intended by Decedent, could not be effectuated by the joint use of a trust and a designation of a transfer-on-death beneficiary.

An account with a transfer-on-death beneficiary passes entirely by contract to the designated beneficiaries upon the death of the account holder. No part of the account ever becomes part of the account holder's estate. Instead, the financial institution holding the account transfers the

investments into a newly created account in the designated beneficiary's name. The account holder cannot dictate what a beneficiary thereafter does with the newly acquired account. Thus, the Trust cannot control the income from the Siebert Account once the Siebert Account is transferred to the Minors. The only way to effectuate the distribution that the Minors contend the Decedent intended to make would be through the Trust.

In short, the Trust provides that Wanvimol Keane is to receive income from the Siebert Account after the Decedent's death, which instruction is contrary to the transfer-on-death designation.

In their Demurrer, the Minors contend that Petitioner did not "provide any extrinsic evidence" to support their allegation that the Decedent intended for the Siebert Account to be an asset of the Trust. The Minors further point out that Petitioner did not provide any documents or writings to support the allegations. However, there is no requirement to produce evidence at the pleading stage. Nor is there a requirement for the 850 Petition to be pled with specificity.

The Petition alleges that the language of Article V.(B) reflects the Decedent's intent to make the Siebert Account a Trust asset; it further alleges that the Decedent understood and clearly communicated to Petitioner and his estate planning attorney that there was no designated beneficiary of the Siebert Account. Such facts are sufficient to state a cause of action under Probate Code section 850. (See *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 734-735 [express intent in estate plan can overcome nonprobate character of asset]; *Araiza v. Yountkin* (2010) 188 Cal.App.4th 1120, 1126 [clear and convincing evidence of a different intent expressed in a trust may defeat designation of account beneficiary].)

The court makes no finding here as to the Decedent's intent with regard to the Siebert Account, and no part of this ruling should be used to argue for against any interpretation of the Trust. The court finds only that the allegations in the 850 Petition are sufficient at the pleading stage to overcome demurrer.

The demurrer is **OVERRULED**.

Counsel for Petitioner is ordered to serve notice of ruling on this Demurrer.

The Minors shall file a written response or objection to the 850 Petition within 10 days of service of the notice of ruling, extended for method of service.

01426892	Velasquez – Trust	TENTATIVE RULING Case: Velasquez – Trust 01426892 Calendar No.: 10 Date: 06/17/2026 MOTION TO BE RELIEVED AS COUNSEL (ROA 20) Attorney Marivel M. Zialcita seeks to be relieved as counsel for Art Vasquez. This motion came before the court on 4/15/26 and was continued for compliance with California Rules of Court, Rule 3.1362. Counsel has since complied. The court finds good cause to relieve attorney Marivel M. Zialcita as counsel of record for Art Vasquez. The motion is GRANTED. Withdrawal is effective upon filing of proof of service of the signed Order Granting Attorney’s Motion to Be Relieved – Civil (MC-053).
01389717	Machorro – Trust	TENTATIVE RULING Case: Machorro – Trust 01389717 Calendar No: 11 Date: 06/17/2026 MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROA 235) Petitioner Vanessa Stone (“Petitioner”) moves for an order to deem admitted the facts set forth in the Requests for Admission, Set One, served on Respondent Lorelei Ann Griggs (“Respondent”). Petitioner further moves for monetary sanctions in the amount of \$1,060.00.

		In opposition (ROAs 341 and 413), Respondent states that she has since served initial and supplemental responses. In reply, Petitioner concedes that the motion is moot in light of the responses but requests that the court impose monetary sanctions. (ROA 510.) Pursuant to Code of Civil Procedure section 2033.280 (c), "It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." Thus, the court awards Petitioner attorney's fees in the amount of \$1,060.00 payable by Respondent Lorelei Ann Griggs. Counsel for moving party is ordered to give notice of this ruling and may elect to prepare, file and serve a proposed Order After Hearing.
		TENTATIVE RULING Case: Calendar No.: Date: